Week 6 – Intellectual Property Rights (Lean Notes)

Lectures covered: L25 (Intellectual Property Rights: an introduction) and L26 (Defining IPR, types and duration), both by Prof. Feroz Ali, IIT Madras. ⭐ = tested in the Week 6 assignment.

1. Concept cards (in the order taught)

1. What intellectual property (IP) is ⭐

- IP = original **ideas, research results and critical business information** that come from **human creative labour**. It is different from **real property** (land, a laptop, a pen), which you can touch and whose boundaries are clear. IP is **intangible**; its limits are hard to see.
- **IP** is the creation (an invention, a book). **IPR** is the right that protects it (patent, copyright). People use the two words interchangeably.

2. What a "right" is

- A **legal entitlement**: can be justified, recognised and protected; breaking it is unlawful and the victim gets a **remedy**. Used as **liberty** (freedom to do something) or **licence** (permission given).
- **Inherent rights** (human rights: vote, privacy) vs rights **created by law** over things (property). **Exclusive right** = power to **stop others** from doing something without your consent.
- **Infringement** = violation of an IP right; it literally means **trespass** into someone's IP. Remedies can be civil (stop the person, damages) or criminal. ⭐

3. What "property" and "intellectual" mean

- Property has **boundaries** that tell it apart from others' property; ownership is shown by possession, a bill or a title deed (with a schedule giving the boundaries).
- IP has no physical boundary, so it must be **described**. For a patent, the **patent specification** describes the invention and ends with the **claims**, which mark the boundaries (the protection covers the claims, **not** the rest of the description). Like a sale deed's schedule.
- **Intellectual** = from the human mind: thinking, mental effort (a carpenter's physical work is visible, his mental effort is not). A machine's output is not intellectual property; the machine's invention is.
- **IPR protects applications and expressions of ideas, not ideas themselves.** Example: all of Agatha Christie's crime novels follow the same genre, but each expression has its own copyright.

4. Common traits of IPR

1. **Enforceable** (a right with a remedy: stop the infringer, or claim damages).
2. **Intangible** and **capable of being described and registered** (a patent goes through "prosecution" at the patent office). **Copyright is the exception: no registration is needed to enforce it** (Berne Convention); a notice (©, name, year) is enough. ⭐
3. **Easy to replicate**: the first copy is costly (millions of dollars for Windows 7), the next is almost free (books, films, medicines).
4. **Needs effort to create**, often by teams (patents and papers are rarely single-author).
5. **Has commercial value.**

- Economists add: **non-rivalrous** (my use does not reduce yours; a room holds 100 people, a book can be read by millions) and **non-excludable** (once it is out, you cannot keep others from using it). These are the traits of **public goods** (like national security).

5. Defining IPR

- **No agreed universal definition.** Common ones: "rights that protect applications of ideas and information of commercial value" and "rights that protect products of creative labour". **WIPO** (World Intellectual Property Organization, UN) gives an inclusive "grocery list" (patents, copyrights, trademarks, designs…) but misses new rights and gives no yardstick. Odd one out: geographical indication has no human creative effort. ⭐ (IP rights entitle: **exclude others, commercially exploit, and sue for infringement**)

6. Types of IPR and what each protects ⭐

Right	Protects	Registration
Patent	**inventions** (technological; a new process or product)	must register (examined)
Copyright	literary and artistic works, sound recordings, films, **computer programs**; it is the right to make copies	**not needed** to enforce; optional
Design	**looks only** (pleasing to the eye, **no functional element**): shape, pattern of mass-produced goods (tiles, bottle shape, jewellery)	must register; **weakest** IPR
Trade mark	words, symbols, logos that identify goods or services (Reebok Delta, Hyundai logo, Mercedes star)	register, or established by use
Geographical indication (GI)	origin of goods (Darjeeling tea); users are the local producers	must register
Trade secret	confidential trade information	none; lasts while secret

- Design vs patent: if a shoe's shape gives grip or reduces air drag, that function is not for a design; a bunny-shaped children's shoe is. The same thing may have several rights (Disney characters: trade mark and copyright).

7. Registration and patent prosecution

- Registration by the state makes a right official and verifiable. Trade mark and design registries mostly **match against earlier entries**. A patent is different: the specification starts with **prior art**, why a person skilled in the art could not do it, the invention, working, embodiments, drawings, and **ends with claims**. The patent office issues a **first examination report** with objections (not patentable subject matter, not novel, **obvious**); the back-and-forth is **patent prosecution**. Granted only if you pass and pay fees to keep it alive.
- Laws: **Patents Act, 1970**; **Trade Marks Act, 1999**.
- Medical methods of treatment cannot be patented in India (Section 3).

8. Bundle of rights differs by type

- **Copyright:** print, publish, perform, film, record; works only when **fixed in a medium** (paper, tape, digital). The oral tradition (memorising and passing on) is outside copyright. IP took off with the **industrial revolution** (printing, mass copies, travel, translation, marketing).
- **Trade mark:** use a mark for all goods and services, even in new fields; stop others even if the owner is not in that business if the mark is **well known** (the Benz mark on undergarments was stopped).
- **Patent:** the right to **make, use, sell, offer for sale and import** the invention.

9. Duration ⭐

Right	Term
Patent	**20 years from the date of filing/application**, same worldwide because of **TRIPS** (WTO). Earlier 14 years in India (7 for pharma); the 14 came from two seven-year apprenticeships under exclusive privileges
Copyright	**life of the author + 60 years** in India (institutions: 60 years from creation/publication); varies by country (no TRIPS

Right	Term
	mandate); Gandhi's works entered the public domain in 2009
Trade mark	granted for a fixed term and **renewable indefinitely** by paying fees and acting against misuse (lecturer says "10 years, renewable every 5 years"; Indian law renews for **10 years** each time)
Trade secret	as long as it stays secret
Design	limited (not given in the lecture)

- **Limited-life IP:** patents, copyrights (fall into the public domain). **Unlimited-life IP:** trade marks, trade secrets. Coca-Cola keeps its word mark forever while designs and other rights come and go. Airtel keeps its old logo mark alive even after changing it.

10. Trade marks without registration: passing off ⭐

- Even an **unregistered** mark has reputation and goodwill. Using a rival's unregistered mark so buyers think your goods are theirs is the tort of **passing off** (Ikea could stop an Indian user although it was not selling in India). Old businesses can stop imitators though they never registered.

11. TRIPS and WTO

- **TRIPS = Trade Related Aspects of Intellectual Property Rights**, a WTO agreement (from the Uruguay Round of 8 years of talks). Sets **minimum standards**; every member must follow; gave the uniform 20-year, technology-neutral patent term. ⭐

12. Who gets the patent? First to file ⭐

- In India (Patents Act, 1970) the right goes to the **first applicant who files**, not the first inventor, first to think of it, or first to commercialise. So **file before disclosing or selling**.

13. Why rights are needed

- Marks identify the maker and carry reputation. Without protection there is piracy and counterfeit, and reputation suffers.

2. Top traps (most likely first)

1. **Copyright needs no registration**; patents, designs, trade marks and GIs do.
2. **Patent term is 20 years from filing**, not from grant.
3. **Patent goes to the first to file** (India follows first-to-file, not first-to-invent).
4. **IPR protects expression and application, not the bare idea.**
5. **A new technical process = patent**, not copyright (that protects the music, not the process) and not trade mark.
6. **Logos and brand symbols = trade marks** (not patent, not GI, not trade dress).
7. **Unregistered trade mark use by a rival = passing off.**
8. **Violation of IPR = infringement**, which brings legal penalties.
9. **IP is not real property**; "all of the above" fails when real property is listed.
10. **IP right entitles: exclude, commercially exploit and sue** (all three).
11. **TRIPS** = Trade Related Aspects of Intellectual Property **Rights**.
12. Patent protection is bounded by the **claims**; designs protect only non-functional appearance and are the weakest.
13. Lecturer slips: "Burn Convention" is the **Berne Convention**; the trade mark renewal period he says as "5 years" is **10 years** in Indian law.

3. Assignment questions with solutions

Q1. Which of the following falls in the category of intellectual property? (select all that apply) *(Q1)* - A. An original set of ideas or research results B. Ideas originating from real property C. Properties emanating from human creative labour D. All of the above

Solution (cards 1, 5): IP comes from human creative labour; real property is a different category, so B and "all of the above" fail. **Answer: A and C.**

Q2. Violations of IPR lead to (select all that apply) *(Q2)* - A. Infringement B. Casual penalties C. No big deal as we have the licence of fundamental rights to do whatever we want D. None of the above

Solution (card 2): Violation is infringement (trespass), with legal penalties. The portal's "casual penalties" most likely means civil or criminal penalties. **Answer: A and B.**

Q3. To obtain legal protection, you don't have to register which type of IPR? *(Q3)* - A. Copyrights B. Patents C. Designs D. Geographical Indications

Solution (cards 4, 6): Copyright arises on creation. **Answer: A.**

Q4. A person invents a new process to capture a musical performance on tape. They will most likely apply for *(Q4)* - A. Copyrights B. Trade Marks C. Patents D. Trade Secret

Solution (card 6): A new technical process is an invention, protected by a patent. **Answer: C.**

Q5. Use of an unregistered trade mark of a competitor amounts to the tort of *(Q5)* - A. Deceit B. Fraud C. Negligence D. Passing off

Solution (card 10). **Answer: D.**

Q6. What does an IP right entitle a person to? *(Q6)* - A. Right to file a suit in case of infringement B. Right of excludability C. Right of commercial exploitation D. All of the above

Solution (cards 2, 5): All three. **Answer: D.**

Q7. The Reebok Delta symbol and Hyundai logo are protected by *(Q7)* - A. Patents B. Trade Marks C. Trade dress D. Geographical Indications

Solution (card 6): Logos and symbols are trade marks. **Answer: B.**

Q8. Under the Patents Act, 1970, the person entitled to a patent on a new invention is *(Q8)* - A. The one who invented first B. The one who commercialised first C. The one who thought of it first D. The one who filed a patent application first

Solution (card 12). **Answer: D.**

Q9. What is the term of a patent in India? *(Q9)* - A. 20 years B. 25 years C. 10 years D. 15 years

Solution (card 9). **Answer: A.**

Q10. What is the full form of TRIPS? *(Q10)* - A. Tariff Related Aspects of Intellectual Properties B. Trade Related Aspects of Intellectual Property Science C. The Registration of Intellectual Property D. Trade Related Aspects of Intellectual Property Rights

Solution (card 11). **Answer: D.**